Joint Standing Committee on Electoral Matters 2025

Submission by Margaret M Callinan 3122 – Kooyong electorate, VIC

Background

Since I gained the right to vote in 1970 when I turned 21, I have never been aware of police presence at a polling both, either Victoria Police or the Australian Federal Police. Both were present in 2025 at Malvern pre-poll.
Police attendance was necessitated at polling booths in 2025 because of appalling behaviour, most of which can't be legislated against, but measures can be taken to reduce the impact of that behaviour.

Although I was politically aware decades beforehand, my first physical involvement in politics was handing out flyers for the [redacted] in Kooyong on election day, 2019. Prior to that date, a very dear, now deceased, friend was an active member of the [redacted] including on election days and at pre-poll sessions for decades. She commented that everyone from all parties and [redacted] got on well – *except for the* [redacted] *who were "awful"*. I campaigned for the [redacted] ([redacted]), [redacted], in Kooyong in 2022 and 2025.

My late friend's assessment was correct.
2022 wasn't too bad as we were treated more as a joke with no chance of winning.
2025 was brutal. Throughout her first term, the [redacted] for Kooyong had the practice of going to advertised locations at shopping centres and local parks, with volunteers for support, to be available to Kooyong constituents.
From the start of 2025, what had been derogatory comments from [redacted] supporters became downright abusive, even threatening, eg I want to punch her in the face, I'll kick her in the head, and similar.
By pre-poll, this behaviour was on steroids and was outright harassment of both volunteers and people queuing to vote.

Behaviour

I realise that polite, civil, sportsmanlike behaviour cannot be legislated so we are stuck with things like …

From the general public:

- Verbal abuse that stops short of making threats
- Verbal abuse that is threatening
- Spitting on the ground near you
- A tall man who had passed a number of male and younger female [redacted] supporters, stopped at me (short, aged 75, a passive holder of flyers if anyone wants to take one from me), smiled, took a flyer, then leered at me, ripped up the flyer and dropped it at my feet.
- Following the above incident I turned to the [redacted] supporter standing uncomfortably close to me and said, "You can't think that sort of behaviour is OK?". His response, "You have to accept it if you annoy people."
  "Annoy" people because I support a different candidate to his? What of democracy? Never mind civil behaviour!

From [redacted] supporters including the candidate:

- Turning up to publicly advertised locations where the sitting member would be available to talk to constituents and anyone who wanted to talk to her only to find that the [redacted] had arrived earlier and set up shop there.

From [redacted] supporters

- Being regularly photo'd and filmed while out campaigning – where did they all end up?!

From [redacted] supporters including members of third party [redacted] / [redacted] funded / [redacted] supporting entities such as Advance and Repeal the Teal (J-United)

- Standing uncomfortably close and making niggling, mocking, running commentary of lies and being intimidating
- Standing within earshot and playing abusive audio/video loudly, meaning to intimidate

- One particular *Repeal the Teal* man who was right in the face of very many people, both volunteers and people waiting to vote, using the most vile, derogatory language and spouting lies about certain candidates, essentially *not* [redacted] candidates.
- Several reports were made to VicPol by supporters of various candidates.
  VicPol did speak to that man once (that I saw), to no avail.

Highlighted: *the especially vile man that VicPol pulled aside and spoke to at Malvern pre-poll.*

Comment

I realise that the above is all behaviour that people would say "*Toughen up, Petal*" about regarding single instances. But when you endure multiple instances on any one day for months, increasing in intensity, until it is absolutely full-on in pre-poll weeks, it becomes hugely stressful. A lot of volunteers have said to me, "Never again." What an indictment on the people concerned and the system that allows it.

It also makes for a very unpleasant and off-putting experience for voters who not so much run the gauntlet as shuffle slowly to finally cast their vote, witnessing and/or being subjected to this behaviour throughout their wait in the queue.

Underpinning all of this annoying to appalling to absolutely vile behaviour is the mountain of lies told about and the personal abuse directed, over months, at Kooyong's [redacted] (and Goldstein's, given Malvern was a 'shared' polling place).

What MUST be done

- The lies must stop.
- Make polling booths safe and reduce abuse, harassment and intimidation as much as possible.

What can and should be done

Stop the Lies

Pass [redacted] Commonwealth Electoral Amendment (Stop the Lies) Bill
[redacted]

Make it safe

Voting locations

- Increase the number of pre-poll locations

- Choose more suitable polling locations, eg High Street, Kew was awful, located where people queued on narrow footpaths on a very busy road too close to a pedestrian crossing.
  This location was the subject of court action when Boroondara Council tried to reduce the number of signs and A-frames – [redacted] supporters had complied when asked by Council, [redacted] did not. The judge found against the Council. I can only think the judge didn't visit the site to see how dangerous it was. Had she done so, the outcome might have been different.
  The [redacted] supporters also tried to negotiate a reduction in signs at Malvern but the [redacted] wouldn't agree.

Voting location organisation

Exclusion zones

- Increase the distance from the polling place from 6 metres to at least 10 and preferably 15 metres within which there can be no political advertising / campaigning of any sort.

- Whatever the distance from polling place the campaigning zone is, *employ more attendants and police it aggressively.* Even the [redacted] candidate ignored the 6 metre zone at Malvern pre-poll, as did the Brethren [redacted] supporters who were 'harvesting' votes from those who pulled into the disabled parking area.

- Have proper barriers for exclusion zones. Cardboard 'bollards' which got moved or blew around and from which it was "guess the distance" were definitely not fit for purpose.

Signage limits

- Set a quite small limit on the number of signs (on posts jammed into the ground, A-frames, whatever) that any candidate can have within, for example, 50 metres, of the exclusion zone.

People limits

- Set a limit on the number of supporters (who must be identifiable by t-shirt, hat or other apparel) that any candidate can have within, for example, 50 metres, of the exclusion zone.

- Stipulate that third party entities, eg Advance, Repeal the Teal, and similar campaigning for or against certain candidates be at a greater distance than the zone for direct supporters of candidates – and aggressively police it.

Policing and staffing

- Empower police (State and Federal) to be able to remove campaigners who are objectionable even if they do not reach the current legal threshold to be charged with an offence. But do charge them if they fail to comply.

- Police exclusion zones, signage and people limits, as above.

- Employ and better train sufficient numbers of AEC staff to adequately run a polling booth. At Malvern, where the bulk of my volunteer experience was, there were definitely too few.
  They did not appear to be particularly well-trained and did not check frequently enough for compliance with the exclusion zone, arrival of people qualifying for disabled parking, and people eligible to vote but outside the local electorates that Malvern was specifically set up for.

Other …

Make information about candidates accessible to all voters
Since the internet arrived, listening to radio, watching free-to-air TV, and reading mainstream newspapers - the traditional election advertising vehicles – have all dropped dramatically in favour of the fractured world of social media, streaming, podcasting and independent media of all sorts.
I suggest that the AEC be brought into the 21st century and that it provides more basic information than it has to date.

Legislate that all candidates must supply
(ie all are compulsory fields in an online submission form so that no form is accepted unless all fields are completed):

- Full name
- Party endorsed by – or Independent, if that is the case
- Contact details
- Web site URL
- Current passport-style photo
- List of political party memberships or affiliations in the preceding 5 years
- Word limited (250, 300?) list of policies, values, aims, or similar

Providing this information about all candidates does not imply endorsement of any of them

Vote and data harvesting, especially in nursing homes/residential care facilities
Stop the practice of political parties being able to send out postal vote applications.
In particular, all applications must go direct to the AEC **not** via political parties or other like entities.

Make it an offence, and prosecute, when political mail is not delivered

- eg in nursing homes and residential care settings of all sorts
- in retirement villages where staff or residents make a decision that because "some people don't like it", none will be delivered - the situation in the retirement village where I live.

Provide training to staff in nursing homes and other residential care settings so that when residents ask questions about voting they are not given wrong information. This is particularly so when so many carers are not citizens and have never voted in Australia.

Urge local Councils to enforce their election signage by-laws in real time.

Political donations

The legislation passed late 2024 regarding political donations is an almost insurmountable barrier to participation in democracy to small parties and independents who do not have

1. the backing of entities that are permitted to donate huge amounts (eg the [redacted] Party's Cormack Foundation)
2. recourse to Party branded but non-candidate specific advertising

- While there will always be a disparity in funds available to different candidates, such a blatant unlevelling of the playing field makes a mockery of democratic intent and the process itself.
- **These laws should be repealed immediately, ie before they come into effect**.
- Bills regulating political donations should not be presented to Parliament if they do not increase, rather than decrease, the element of fairness that democracy demands.

Margaret Callinan, 13 October, 2025